

Its prime purpose is to provide the legal infrastructure for e-commerce in India. It was the first legal instrument to provide legal sanctity to electronic records and contracts expressed through electronic means of communication. The act was later amended in December 2008 through the IT (Amendment) Act, 2008. Some of their salient points are:

- ▶ **Digital Signatures:** Electronic records may be authenticated by a subscriber by affixing digital signatures; further, the signature may be verified using the public key provided by the subscriber
- ▶ **Certifying Authorities:** domestic and foreign certifying authorities (which provide digital signature certificates) are recognized by the law; a “Controller of Certifying Authorities” shall supervise them
- ▶ **Electronic governance:** Documents required as per law by any arm of the government may be supplied in electronic form, and such documents are to be treated the same as handwritten, typewritten or printed documents
- ▶ **Offences and Penalties:** An Adjudicating Officer shall judge whether a person has committed an offence in contravention of any provision of the IT Act, 2000; the maximum penalty for any damage to computers or computer systems is a fine up to ₹1 crore
- ▶ **Appellate Tribunals:** A Cyber Regulations Appellate Tribunal shall be formed which shall hear appeals against orders passed by the Adjudicating Officers
- ▶ **Investigation:** Offences shall only be investigated by a police officer of the rank of the Deputy Superintendent of Police or above (amended to the rank “Inspector” or above by the IT (Amendment) Act, 2008)
- ▶ **Amendments to other laws:** Other acts such as the Indian Penal Code, 1860, the Indian Evidence Act, 1872, the Bankers’ Books Evidence Act, 1891, the Reserve Bank of India Act, 1934 were to be amended to align them with the IT Act
- ▶ **Network Service Providers:** Intermediaries in the data transmission process, such as Internet Service Providers, are not liable in certain cases, so long as the intermediary expeditiously acts to prevent the cybercrime on getting such instruction from the Government or its agency.

